

10. 9:00 AM CASE NUMBER: C25-00491
CASE NAME: KATHERINE WILSON VS. ALYSSA DOE
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. KELLER**
FILED BY: ELITE FACIALS, LLC
TENTATIVE RULING:

See Line 9, above.

11. 9:00 AM CASE NUMBER: C25-00654
CASE NAME: IFGFGISI EAST BAY CHURCH VS. GARY HEATH
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: HEATH, GARY L.
TENTATIVE RULING:

Defendants Gary Heath and Kelly Heath's demurrer to the complaint is **overruled**. Defendants shall file and serve an answer within 10 days of notice of entry of this order.

Plaintiff IFGFGISI East Bay Church (the Church) is suing Gary Heath and Kelly Heath, individually and as trustees of The Heath Family Trust and d/b/a The Pool Doctor. The Church alleges that it owns property abutting Defendants' property and that the Church has an easement over a portion of Defendants' property. The Church is bringing claims for (1) ejectment, (2) enforcement of easement, (3) declaratory relief, (4) breach of easement, (5) trespass, (6) nuisance and (7) injunctive relief.

As an initial matter, the Court notes that Defendants filed a notice of motion and a memorandum, but did not file a proper demurrer. "Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses." (California Rules of Court, rule 3.1320 (a); see also Code of Civil Procedure section 430.60.) The Court exercises its discretion to consider the demurrer despite the failure to comply with this section.

Gary Heath and Kelly Heath have demurred to each cause of action based upon the failure to state sufficient facts to constitute a cause of action, Code of Civil Procedure section 430.10(e).

Defendant filed its reply on November 20, which is one day late. The Court again exercises its discretion to consider the late filed reply, however, the Court cautions that future violations of the rules may result in the filing being disregarded. (California Rules of Court, rule 3.1300(d).)

Individual Capacity

Defendants' main argument is that the Heaths should not be sued in their individual capacity and should only be sued as trustees of The Heath Family Trust because the Trust owns the property at issue.

" '[T]he trustee, rather than the trust, is the real party in interest in litigation involving trust property.' [Citations.]" (*Nicholson v. Fazeli* (2003) 113 Cal.App.4th 1091, 1102.) While mere control over a trust is not sufficient to subject a trustee to individual liability, a trustee may be "personally

liable . . . for any obligation arising from ownership or control of trust property” if he or she “*intentionally or negligently* acted or failed to act in a manner that establishes personal fault.” (*Haskett v. Villas at Desert Falls* (2001) 90 Cal.App.4th 864, 877-878; see Prob. Code, §§ 18001, 18002.)

The parties agree that the Heath Family Trust owns the property at issue here. The Heaths are trustees of the Trust and are alleged to run a business, in their individual capacities, called The Pool Doctor. (Comp. ¶¶6 -7.) Plaintiff alleges that Defendants have installed fencing gates with locks in the easement area and not provided keys to Plaintiff. Defendants have also stored vehicles, storage containers, tools and equipment within the easement area. (Comp. ¶¶22-23.)

These allegations show intentional or at least negligent conduct in failing to clear the easement area and in not providing keys to the gate to Plaintiff. The Court finds that these allegations are sufficient at the pleading stage to allow Plaintiff to sue the Heaths in their individual capacities for claims related to the easement.

Ejectment (c/a 1)

In demurring to the ejectment claim, Defendants argue that the complaint does not allege that the Heaths are in possession of the easement area in their individual capacities. As explained above, there are sufficient allegations to sue the Heaths in their individual capacities and therefore, the demurrer to cause of action one is overruled.

Easement Claims (c/a 2 and 4)

Defendants argue that the complaint does not allege the scope of the easement or how Defendants’ acts exceed the permissible uses of the servient estate. The complaint includes a copy of the easement, which states that it is a right of way easement “for use as a roadway for vehicles of all kinds, pedestrians and animals... [and utilities]”. (Comp. ex. 1.) Further, the complaint alleges that Defendants are blocking the easement. (Comp. ¶¶22-23.) These allegations are sufficient to show the scope of the easement and how Defendants’ are exceeding their permissible use.

Defendant also argues that the facts showing violations of the easement are insufficient and it is unclear what the Heaths did in their individual capacities. As noted above, the allegations are sufficient for the Heaths to be sued in their individual capacities.

The demurrer to cause of action two is overruled.

Declaratory Relief (c/a 3) and Injunctive Relief (c/a 7)

For both the declaratory relief and injunctive relief claims, Defendants argue that there would be no actual controversy if the claims for the easement, trespass and nuisance fail. The demurrer to the easement, trespass and nuisance claims is overruled and therefore, this argument fails.

Defendants argue that there are only vague allegations of the Heaths doing business as The

Pool Doctor and they do not support the theory that the Heaths were doing anything in their individual capacities on the property owned by their Family Trust and operated by a corporation. As discussed above, there are sufficient facts to show that the Heaths could be liable in their individual capacities.

Defendants also claim that the Trust property is occupied by K & G Unlimited, a California Corporation, dba The Pool Doctor. The complaint does not name K & G Unlimited and Defendants did not include a request for judicial notice in their moving papers of the fact that K & G Unlimited occupies the property. Arguments regarding an unnamed corporation are not properly before this Court. Further, it does not appear that this issue was included in the parties' meet and confer.

Breach of Easement (c/a 4)

As to the breach of easement claim, Defendants argue that the Trust owns the property and therefore, the Heaths cannot be liable for breach of the easement in their individual capacities. As noted above, the allegations are sufficient for the Heaths to be sued in their individual capacities. Further, to the extent there are different rules for breach of contract, Defendants did not cite any authority to support this position and therefore, the demurrer to cause of action four is overruled.

Trespass (c/a 5)

" 'The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm.' [Citation.]" (*Golden Gate Land Holdings LLC v. Direct Action Everywhere* (2022) 81 Cal.App.5th 82, 90–91.)

As to the trespass claim, Defendants provide the elements for trespass and then argues that Plaintiff has failed to allege facts to support each of the elements of trespass. Defendants offer no analysis or explanation on why each element of trespass is missing. Defendants have not met their burden of showing that the trespass claim fails and the demurrer is overruled as to cause of action five.

Nuisance (c/a 6)

As to the nuisance claim, Defendants again argue that they should not be sued in their individual capacities. As explained above, there are sufficient facts for the Heaths to be sued in their individual capacities. The demurrer is overruled as to cause of action six.